

		unconscionability challenge to the delegation clause, the party “must explain how those provisions make <i>the fact of an arbitrator deciding [enforceability]</i> unconscionable.” (<i>Holley-Gallegly v. TA Operating, LLC</i> (2023) 74 F.4th 997, 1002, emphasis original, citing <i>Rent-A-Center, supra</i>, 561 U.S. at p. 74; see also <i>Tiri, supra</i>, 226 Cal.App.4th at p. 243, emphasis original [“any claim of unconscionability must be <i>specific to the delegation clause</i>”].) Therefore, the Court finds that the parties have delegated the question of enforceability of the agreement to the arbitrator. This ends the Court’s inquiry under Code of Civil Procedure (CCP) section 1281.2, and the Court need not consider the remainder of Plaintiff’s arguments as to whether the agreement is unconscionable as a whole such that the agreement should not be enforced. Class Claims Plaintiff’s only argument that the class claims cannot be dismissed is that Defendant “has not proven and cannot conscionably enforce” the agreement, which contains a class action waiver. (Opp. at p. 13.) However, as explained above, the Court has ruled that the agreement exists and that issues of the agreement’s general enforceability are delegated to the arbitrator. Therefore, Plaintiff is ORDERED to arbitrate his individual claims against Defendant, including Plaintiff’s individual PAGA claim against Defendant. Plaintiff’s class claims against Defendant are hereby DISMISSED. This action is STAYED until the arbitration is had pursuant to Code of Civil Procedure section 1281.4. An ADR review hearing is scheduled for July 8, 2027 at 9:30AM in Department CX102. The parties shall submit a joint status report 10 days in advance of the hearing. Defendant shall give notice.
104	David Goldman v. LBG Real Estate Companies, LLC 2025-01498037	Motion to Seal Third Parties Leslie Lundin and Douglas Beiswenger’s Motion to Seal Documents Filed in Support of David Goldman’s Supplemental Moving Papers In Support Of His Motion For Receiver For LBG Real Estate Companies, LLC As Authorized By The Order Of This Court Dated January 22, 2026 is GRANTED. Third Parties seek to seal unredacted versions of the following: 1. Plaintiff David Goldman’s Supplemental Moving Papers Support of His Motion for Receiver for LBG Real Estate Companies, LLC As Authorized by the Order of This Court Dated January 22, 2026 (the “Supplemental Moving Papers”), (Unredacted Version Filed Conditionally Under Seal);

2. Declaration of Ethan J. Brown In Support of Plaintiff David Goldman’s Supplemental Moving Papers Support of His Motion for Receiver for LBG Real Estate Companies, LLC As Authorized by the Order of This Court Dated January 22, 2026 Volume 1 of 2, (Unredacted Version Filed Conditionally Under Seal);
3. Declaration of Ethan J. Brown In Support of Plaintiff David Goldman’s Supplemental Moving Papers Support of His Motion for Receiver for LBG Real Estate Companies, LLC As Authorized by the Order of This Court Dated January 22, 2026 Volume 2 of 3, (Unredacted Version Filed Conditionally Under Seal); and
4. Declaration of Ethan J. Brown In Support of Plaintiff David Goldman’s Supplemental Moving Papers Support of His Motion for Receiver for LBG Real Estate Companies, LLC As Authorized by the Order of This Court Dated January 22, 2026 Volume 3 of 3 (collectively the “Brown Declaration”), (Unredacted Version Filed Conditionally Under Seal).

Third Parties move to seal attorney-client privileged information relating to the amount of attorneys’ fees paid in ongoing litigation.

“Unless confidentiality is required by law, court records are presumed to be open.” (Cal. Rules of Court [CRC], rule 2.550(c).) “The court may order that a record be filed under seal only if it expressly finds facts that establish: (1) [t]here exists an overriding interest that overcomes the right of public access to the record; (2) [t]he overriding interest supports sealing the record; (3) [a] substantial probability exists that the overriding interest will be prejudiced if the record is not sealed; (4) [t]he proposed sealing is narrowly tailored; and (5) [n]o less restrictive means exist to achieve the overriding interest.” (CRC, rule 2.550(d).)

However, this rule “does not apply to records that are required to be kept confidential by law” (CRC, rule 2.550(a)(2)), such as “[a] document which is protected by the lawyer-client privilege[, which] is not subject to the [CRC rule 2.550(d)] findings requirements.” (*Huffy Corp. v. Super. Ct.* (2003) 112 Cal.App.4th 97, 108).

Overriding interests include a substantial probability that the movant’s privacy rights will be adversely affected if the record is not sealed. (See, e.g., *Overstock.com, Inc. v. Goldman Sachs Group, Inc.* (2014) 231 Cal.App.4th 471, 503, internal quotes & citations omitted [right to privacy “extends to one’s confidential financial affairs” and “embraces confidential financial information in whatever form it takes, whether that form be tax returns, checks, statements, or other account information”]; *Hecht, Solberg, Robinson, Goldberg & Bagley LLP v. Super. Ct.* (2006) 137 Cal.App.4th 579, 594 [“Although corporations have a lesser right to privacy than human beings and are not entitled to claim a right to privacy in terms of a fundamental right, some right to privacy exists”]; see also *Universal City Studios, Inc. v. Super. Ct.* (2003) 110 Cal.App.4th 1273,

		1286 [denying motion to seal due to public disclosure, but finding that normally, sealing is appropriate where “information involves confidential matters relating to the business operations of defendant” and “public revelation of these matters would interfere with its ability to effectively compete in the marketplace”].) Here, on 5/15/2026, the Court sustained Third Parties’ attorney-client privilege objections related to the documents at issue and ordered that any papers filed by Goldman containing the privileged information be stricken from the record. (ROA #226.) Thus, granting the motion to seal this information is consistent with the Court’s previous ruling, and the Court need not make additional express findings under CRC, rule 2.550(d). Accordingly, the Court ORDERS that the unredacted versions of the above-listed documents that had been filed conditionally under seal now be permanently sealed. Moving parties shall provide notice.
105	Fernandez vs. Michael Nicholas Designs 2023-01362788	Motion for Final Approval Class/PAGA Settlement Plaintiffs Monica Fernandez and Eva Zavala’s Motion for Final Approval of Class Action and PAGA Settlement is GRANTED. This is a putative wage-and-hour class action and PAGA matter. On 11/17/2023, Plaintiff Monica Fernandez, individually and on behalf of all others similarly situated, filed a class action against Defendant Michael Nicholas Designs, Inc. The operative complaint is the second amended complaint (SAC), filed on 8/26/2024 per the parties’ stipulation and court order. (ROA #42.) The SAC added Eva Zavala as a plaintiff and alleges 8 causes of action for various Labor Code wage-and-hour violations and unfair business practices. On 2/4/2025, Plaintiffs further amended the complaint to name Michael Nicholas Designs, LLC as Defendant Doe 1. (ROA #61.) On 5/23/2025, Plaintiffs filed the motion for preliminary approval. (ROA #100.) On 2/19/2026 at the second hearing on the motion, the Court granted the motion. (ROA #129.) On 3/3/2026, the Court signed the order granting preliminary approval. (ROA #134.) On 5/11/2026, the Court signed a stipulated amended order granting preliminary approval. (ROA #152.) On 8/5/2026, Plaintiffs filed the instant Motion for Final Approval of Class Action and PAGA Settlement. (ROA #173.) The motion seeks approval of the Class Action and PAGA Settlement Agreement and Class Notice and First Amendment to Class Action and PAGA Settlement Agreement (collectively with original settlement agreement, “Settlement Agreement”), which provide for the settlement of Plaintiffs’ class and PAGA claims for the non-reversionary gross settlement amount (“GSA”) of \$773,360. The GSA includes \$40,000 allocated for PAGA penalties.